



POLICE DEPARTMENT

May 22, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208392 (Incident Date: November 29, 2022) regarding Police Officer Robert Kullak, Tax No. 966143 (DADS No. 2024-29878)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208392, pertaining to Police Officer Robert Kullak. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this case, the CCRB substantiated two allegations against Officer Kullak: improper force and discourtesy. The act underlying the force allegation was Officer Kullak punching the complainant while the complainant was rear-cuffed. The discourtesy allegation was based solely on Officer Kullak having a 103rd Precinct "Devil's Island" patch on his bullet resistant vest.

From the body-worn camera footage of the incident, the complainant can be seen reaching into his pocket, while rear-cuffed, despite several orders from multiple officers to "stop reaching." Officer Kullak was giving the same order to the complainant while simultaneously removing the complainant's left hand from the complainant's front left pant pocket with his right hand and punching the complainant's midsection with his left hand. After considering the facts and circumstances, the Police Commissioner has determined that no disciplinary action is warranted for the force allegation. Officer Kullak can be seen on body-worn camera to pull his punch, and barely made contact with the complainant's midsection. There was no force behind it. The complainant did not react to the punch and appeared not to have felt it. It is clear then, that this punch was hardly a

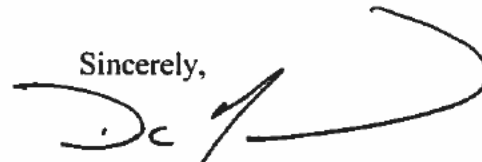
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punch at all. Furthermore, the Police Commissioner finds Officer Kullak's use of force to be in accordance with Patrol Guide Procedure 221-01, "Force Guidelines," given the complainant's continued noncompliance and active resistance. Finally, the Police Commissioner agrees with the CCRB's finding that Officer Kullak's "Devil's Island" patch was discourteous.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Kullak for the force allegation. Furthermore, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline for the discourtesy allegation.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino", with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

May 23, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

**RE: CCRB Case No. 202208392
(DADS No. 2024-29878)**

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 22, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and issue a Schedule “A” Command Discipline against Officer Kullak. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

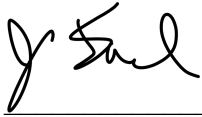
For Specification one (1) the Police Commissioner determined that no disciplinary action is warranted for the force allegation; that Officer Kullak was seen on body-worn camera and punched the complainant, but that the Officer Kullak “barely made contact with the complainant's midsection. There was no force behind it. The complainant did not react to the punch and appeared not to have felt it. It is clear then, that this punch was hardly a punch at all.” Moreover, the letter indicates that the Police Commissioner finds that the Officer Kullak’ use of force was in accordance with the Patrol Guide 221-01, “Force Guidelines” and that the Police Commissioner intends to impose no disciplinary action against Officer Kullak for the force allegation.

Regarding Specification two (2), Deputy Chief Marino states that “the Police Commissioner agrees with the CCRB's finding that Officer Kullak's "Devil's Island" patch was discourteous and the Police Commissioner intends to direct issuance of a Schedule “A” Command Discipline for the discourtesy allegation.

CCRB respectfully disagrees with the determination regarding Specification one (1), the force allegation. Officer Kullak’s acts were not in accordance with Patrol Guide Section 221-01, which prohibits the use of force on handcuffed subjects. Here the complainant was rear-cuffed, and in an upright sitting position. He was not displaying any physical resistance and he was not committing an assault.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Officer Kullak in this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 24, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

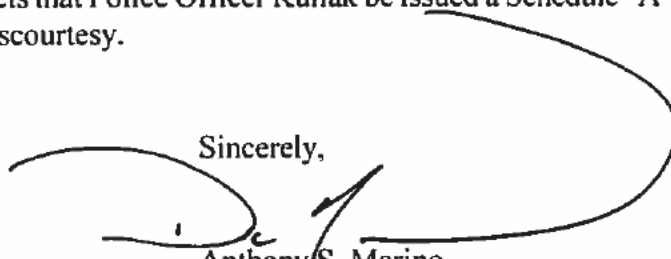
Re: CCRB Case No. 202208392 (Incident Date: November 29, 2022) regarding Police Officer Robert Kullak, Tax No. 966143 (DADS No. 2024-29878)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 23, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Robert Kullak. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Kullak for the reasons expressed in my May 22, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegation of force. However, the Police Commissioner also directs that Police Officer Kullak be issued a Schedule "A" Command Discipline for the allegation of discourtesy.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office